

1. **22CV00518 Rivera, Jose v. Chavoya, Martha et al**

*EVENT: Motion for Interlocutory Judgment Approving Partition By Sale of Real Property and Appointment of Referee*

Motion for interlocutory judgment is denied.

Counsel is ordered to appear and be prepared to select a court trial date in 2027. The Court notes Defendants have admitted that Plaintiff is a current owner of the property. Consequently, that issue is conclusively established.

Thus, the matters to be determined at the court trial are the respective percentage interests in the property, any accounting issues, and whether the manufactured home is included in the sale.

2. **23CV01923 Greenberg, Stuart et al v. Jacques, Michael et al**

*EVENT: Defendant William Jacques' Demurrer to Third Amended Complaint*

*The TAC Sufficiently Alleges a Confidential Relationship Applicable to the Underlying Disputes in this Case*

*Weiner v. Fleischman* at p. 482:

A joint venture is "an undertaking by two or more persons jointly to carry out a single business enterprise for profit. [Citations.]" (*Nelson v. Abraham* (1947) 29 Cal.2d 745, 749 [177 P.2d 931].) "Like partners, joint venturers are fiduciaries with a duty of disclosure and liability to account for profits." (9 Witkin, Summary of Cal. Law (9th ed. 1989) Partnership, § 19, p. 418.)

Here, the TAC alleges Plaintiff and William had a confidential relationship due to various business ventures. Thus, the TAC sufficiently alleges a confidential relationship to the extent they owed each other duties with respect to matters related to those business ventures.

William argues that even if his prior business dealings created a fiduciary or confidential relationship, such fiduciary obligations would not apply to business dealings for which